

JOHNSON v CITY OF ANGELS, et al.

24CV47321

INDIVIDUAL DEFENDANTS' DEMURRER AND MOTION TO STRIKE

On or about April 16, 2024, Plaintiff filed a Complaint alleging "Intentional Tort: building of fence in curtilage making curtilage inaccessible and car garages inaccessible" and "Intentional Tort: Libel, slander telling public that there are dangerous people, perverts, drug dealers, addicts, sex offenders, criminals, persons dangerous to minors, living at plaintiffs house, as well as other accusations." (Plaintiff's Complaint). Individual defendants are Scott McNurlin ("McNurlin"), Diane Bateman ("Bateman"), Christy Miro ("Miro"), Jenny Eltringham ("Eltringham"), Timothy Randall ("Randall", and Alvin Broglio ("Broglio") (collectively "Individual Defendants.")¹

The Complaint was served on McNurlin and Bateman on May 8, 2024, on Miro, Eltringham, and Randall on May 21, 2024 and finally on Broglio on May 24, 2024.

Individual defendants now demur and move to strike portions of the complaint. Defendants' request for judicial notice is granted but the demurrer is overruled and the motion to strike is denied.

First, neither the demurrer nor the motion comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall Include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and

¹ Mark Twain Elementary Middle School is not a legal entity and is not named in the Complaint but was served on May 8, 2024. (RJN 3). Named Defendants Paula Wyant and Mark Twain Union Elementary School District were not served in this action (RJN 2) and, although will be represented by the same Counsel, are not bringing the instant Motion, nor is served defendant City of Angels.

evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Additionally, Plaintiff filed an amended complaint after the motion to strike and demurrer were filed. Accordingly defendants' demurrer and motions are moot.

Based on the foregoing, the demurrer is **OVERRULED** and the motion to strike is **DENIED**, both without prejudice, to renew as to the first amended complaint, with proper notice.

The Clerk shall provide notice of the Ruling forthwith. No further formal Order is required.